

Residential Rental Agreement Guide - Sri Lanka

This guide provides general information about residential rental agreements in Sri Lanka. It explains important terms, responsibilities, and legal considerations for landlords and tenants.

This document is prepared for legal awareness purposes and does not replace professional legal advice.

1. Legal Framework

Residential rental relationships in Sri Lanka may be governed by applicable tenancy laws, including:

- Rent Act No. 7 of 1972 and subsequent amendments
- General principles of contract law applicable to rental agreements

The applicability of specific laws depends on factors such as the type of premises, date of tenancy, and circumstances of the agreement.

2. Residential Rental Agreement

A residential rental agreement is a written contract between a landlord and a tenant.

A proper agreement should include:

- Full names and identification details of landlord and tenant
- Address and description of the rented property
- Monthly rental amount
- Payment date and payment method
- Duration of the tenancy
- Security deposit details
- Responsibilities for repairs and maintenance
- Conditions for termination of the agreement

3. Important Clauses in a Rental Agreement

1. Rent Payment Clause

Specifies the amount of rent, payment date, and acceptable payment method.

2. Security Deposit Clause

Explains the amount paid as security, conditions for deductions, and refund process.

3. Maintenance Clause

Defines responsibility for repairs, damages, and property maintenance.

4. Termination Clause

Explains notice requirements and conditions for ending the tenancy.

5. Use of Property Clause

Specifies that the property should be used only for agreed residential purposes.

4. Responsibilities of the Tenant

The tenant should:

- Pay rent according to the agreement
- Maintain the property in reasonable condition
- Avoid causing unnecessary damage
- Follow agreed terms and conditions
- Keep records of rent payments
- Inform the landlord about important maintenance issues

5. Responsibilities of the Landlord

The landlord should:

- Provide lawful access to the rented premises
- Maintain agreed responsibilities related to the property
- Respect the tenant's lawful occupation
- Clearly communicate rental conditions
- Follow applicable legal procedures when resolving disputes

6. Security Deposit

A security deposit is commonly collected to protect against unpaid rent or damages.

The agreement should clearly mention:

- Deposit amount
- Purpose of the deposit
- Conditions under which deductions can be made
- Procedure for returning the remaining amount

7. Rental Disputes

Common rental disputes include:

- Unpaid rent
- Sudden requests to leave the property
- Security deposit disagreements
- Repair and maintenance disputes
- Breach of rental agreement conditions

Recommended steps:

1. Review the rental agreement.
2. Collect relevant documents and payment records.
3. Communicate with the other party clearly.
4. Seek legal advice if the dispute cannot be resolved.

8. Important Documents to Keep

Both parties should maintain copies of:

- Signed rental agreement
- Identity details
- Rent payment receipts
- Bank transfer records
- Written notices and communications
- Property condition records

9. Legal References

Relevant legal references:

- Rent Act No. 7 of 1972
- Amendments to tenancy-related laws
- Contract law principles applicable to agreements in Sri Lanka

For complex disputes, consultation with a qualified legal professional is recommended.